ORDINANCE NO. 523

AN ORDINANCE AUTHORIZING THE CITY OF RECTOR, ARKANSAS, TO REGULATE THE CLEANING OF BUILDINGS AND RESIDENCES THAT HAVE BEEN DECLARED A NUISANCE BY THE CITY OF RECTOR DUE TO SUBSTANTIAL FIRE DAMAGE OR DESTRUCTION

WHEREAS, it is necessary for the City of Rector, Arkansas, to monitor the appearance of all property and to prevent any property from becoming a hazard or a nuisance within the city; and

NOW THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF RECTOR, ARKANSAS, AS FOLLOWS:

Section 1: The City Superintendent shall notify the City Council of any structures that have sustained substantial fire damage or destruction within the city limits at the next subsequent Council meeting.

Section 2: The City Superintendent shall notify the owner of the property by certified mail, restricted delivery or personal service of the owner's responsibility within this ordinance.

Section 3: The owner of the house, building and/or structure shall be given 90 days, from receipt of the letter, to remove and or dispose of the same in such a manner as deemed appropriate by the Rector Street Department and Rector City Council.

Section 4: If the house, building and/structure constituting a nuisance has not been torn down and removed, or otherwise remedied as requested by the Rector City Council, the City Council may designate the City Superintendent to tear down and remove any such house, building, and/or structure. The City of Rector may seek

reimbursement for the costs of clean up through reasonable collection efforts, including, but not limited to filing a lien on the owner's property. The City of Rector may also chose to issue a citation for violation of this ordinance.

Section 5: If the owner has not complied with this ordinance and notice has been sufficiently met, a fine of ($100.00) is hereby imposed against the owner or owners of any house, building and/or structure found declared to be in violation of this ordinance. The City of Rector shall also be entitled to all restitution for the costs of clean up as stated in Section 4.

Section 6: If the owner/owners of the property do not comply with the court order, subsequent violations of this ordinance will result in a fine ranging from $200 to $500 and restitution associated with clean up costs.

THEREFORE, an emergency is declared to exist and this Ordinance is necessary for the public peace, health and safety and this Ordinance shall be in full force and effect from and after its passage and approval.

PASSED AND APPROVED on this 7th **day of** May **, 2007.**

Mayor

ATTEST:

City Clerk